

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Daniel Cooper	Team: Squad #07	CCRB Case #: 201601496	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Thursday, 09/10/2015 2:15 PM	Location of Incident: East 119th Street	18 Mo. SOL 3/10/2017	Precinct: 25		
Date/Time CV Reported Wed, 02/24/2016 1:30 PM	CV Reported At: CCRB	How CV Reported: In-person	Date/Time Received at CCRB Wed, 02/24/2016 2:36 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. An officer			NARCBMN
2. SGT Darrien King	02617	936870	NARCBMN
3. DT3 Sandy Marrero	02511	933967	NARCBMN
4. DT3 Hector Lopez	4728	935204	NARCBMN
5. DT3 Amanda Lopez	2241	944742	NARCBMN
6. POM Jesus Sosa	08636	948138	NARCBMN

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Raphael Mero	06675	947247	NARCBMN

Officer(s)	Allegation	Investigator Recommendation
A . SGT Darrien King	Abuse: Sergeant Darrien King stopped § 87(2)(b)	A . Unsubstantiated
B . SGT Darrien King	Abuse: Sergeant Darrien King stopped § 87(2)(b)	B . Unsubstantiated
C . SGT Darrien King	Abuse: Sergeant Darrien King stopped an individual.	C . Unsubstantiated
D . SGT Darrien King	Abuse: Sergeant Darrien King frisked § 87(2)(b)	D . Substantiated
E . SGT Darrien King	Abuse: Sergeant Darrien King searched § 87(2)(b)	E . Unsubstantiated
F . POM Jesus Sosa	Abuse: Police Officer Jesus Sosa refused to provide his name to § 87(2)(b)	F . Unsubstantiated
G . An officer	Abuse: An officer searched the vehicle in which individuals were occupants.	G . Alleged Victim Unavailable
H . DT3 Amanda Lopez	Abuse: Detective Amanda Lopez frisked individuals.	H . Victim Unidentified
I . DT3 Sandy Marrero	Abuse: Detective Sandy Marrero frisked individuals.	I . Alleged Victim Unavailable
§ 87(4-b) § 87(2)(g)		

Officer(s)	Allegation	Investigator Recommendation
§ 87(4-b) § 87(2)(g)		

Case Summary

On September 10, 2015, at approximately 2:15 p.m. near East 119th Street, in Manhattan, Sgt. Darrien King, Det. Amanda Lopez, Det. Sandy Marrero and PO Jesus Sosa from Narcotic Borough Manhattan North stopped § 87(2)(b) and two of his friends, § 87(2)(b) and an individual § 87(2)(b) knows only by the name ‘§ 87(2)(b) (Allegations A-C). While stopped, Sgt. King searched § 87(2)(b) s pockets and his backpack and frisked § 87(2)(b) (Allegation D and E). When § 87(2)(b) requested PO Sosa’s name, PO Sosa allegedly did not provide the information to § 87(2)(b) (Allegation F). While § 87(2)(b) was stopped, Det. Amanda Lopez or Det. Marrero allegedly searched § 87(2)(b) vehicle. Det. Amanda Lopez and Det. Marrero then allegedly frisked § 87(2)(b) and ‘§ 87(2)(b) (Allegations H and I). The officers then left the area and no arrests were made or summons issued.

There is no video evidence for this case. The case surpassed the 90-day benchmark on May 24, 2016. A delay in the investigation occurred because the command erroneously sent documents which did not correspond to the correct incident date. Documentation which corresponded to the incident date was needed in order identify the officers involved.

Mediation, Civil, and Criminal Histories

- § 87(2)(b) declined mediation.
- As of May 19, 2016 § 87(2)(b) has not filed a Notice of Claim (Board Review 8)
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]
[REDACTED]

Civilian and Officer Histories

- § 87(2)(b) has filed one previous CCRB complaint § 87(2)(b) [REDACTED] This the first complaint in which § 87(2)(b) is a victim (Board Review 29).
- Sgt. Darrien King has been a member of service for 11 years and has been the subject of ten allegations stemming from four cases, none of which have been substantiated § 87(2)(g) [REDACTED]
- Det. Sandy Marrero has been a member of service for 12 years and has been the subject of one substantiated allegation. In case number 201412496, the Board recommended command discipline for a strip search allegation and the NYPD instituted command discipline. § 87(2)(g), § 87(4-b) [REDACTED]
- Det. Amanda Lopez has been a member of service for eight years § 87(2)(g), § 87(4-b) [REDACTED]
- PO Jesus Sosa has been a member of service for seven years and this is his first CCRB complaint.
- Det. Hector Lopez has been a member of service for 11 years and has been the subject of 17 allegations stemming from 7 cases, none of which have been substantiated § 87(2)(g) [REDACTED] . § 87(2)(g), § 87(4-b) [REDACTED]

Potential Issues

During § 87(2)(b)'s testimony he provided that he was stopped with two friends, § 87(2)(b) and an acquaintance by the name "§ 87(2)(b) § 87(2)(b)" was only able to provide a phone number for § 87(2)(b) but was unable to provide any contact information for "§ 87(2)(b)". Database searches only yielded two addresses and letters were sent to those addresses. Both individuals who live at the address which corresponded to § 87(2)(b) contacted the CCRB, and confirmed that addresses where the letters were sent, were not an address for § 87(2)(b). Five calls were made to the phone number provided for § 87(2)(b). Additionally, five follow-up phone calls made to § 87(2)(b) to obtain additional information, but no contact was established with § 87(2)(b). Absent additional identifying information for "§ 87(2)(b)" no database searches could be conducted and both men were therefore unavailable to the investigation.

Findings and Recommendations

Explanation of Subject Officer Identification

§ 87(2)(b) described the first two plainclothes detectives to arrive as a Hispanic male, approximately 5'7" to 5'8", 200 pounds, with a stocky build, and with medium brown skin, and a white or Hispanic female, approximately 5'8" tall, with an athletic build. § 87(2)(b) described the second set of detectives as a black male, approximately 5'7" tall, weighing 170 pounds, with an average build, who provided his name as "Sgt. Darrien King", and a short white female, with an average build. The two male detectives interacted with § 87(2)(b) while the two female detectives interacted with § 87(2)(b) and "§ 87(2)(b)" (Board Review 1).

CTS confirmed that Sgt. Darrien King was assigned to Narcotic Borough Manhattan North. The Narcotics Borough Manhattan North 25th Precinct Module tactical plan and roll call confirmed that at the time of the incident, Sgt. Darrien King was assigned to the lead car with Det. Sandy Marrero. PO Sosa and Det. Amanda Lopez were assigned to the chase car and Det. Hector Lopez and PO Raphael Mero were assigned to the prisoner van. Police documentation confirmed that there were three Hispanic males and only two Hispanic females working at the time of the incident (Board Review 7 and 17).

During Sgt. King's interview, he acknowledged that he interacted with § 87(2)(b) and that he went over the radio requesting that members of his team stop § 87(2)(b) and two other individuals. However, at the time of the stop, Sgt. King recalled that he worked with Det. Hector Lopez and Det. Marrero but did not recall which other officers were present. During his interview, Det. Hector Lopez denied being present for the interaction and stated that he would not have responded, given that he was assigned to the prisoner van. Det. Hector Lopez is described as a § 87(2)(b)-old Hispanic male, § 87(2)(b), with black hair and brown eyes. During PO Sosa's interview, he did not recall the incident but acknowledged an entry in his memo book that referenced Sgt. King going over the radio. PO Sosa also acknowledged that he was assigned to the chase car with Det. Amanda Lopez during the time of the incident. PO Sosa is described as a § 87(2)(b)-old Hispanic male, § 87(2)(b) with black hair and brown eyes. An MOS photograph indicated that PO

Mero, the only other male on the team, is a § 87(2)(b)-old Hispanic male, § 87(2)(b) and bald (Board Review 10 and 12).

Although Sgt. King recalled that he worked with Det. Hector Lopez, there were three Hispanic males working at the time of the incident. § 87(2)(g)

Det. Marrero and Det. Amanda Lopez were the only two Hispanic females working at the time of the incident and matched the general descriptions § 87(2)(b) provided. § 87(2)(g)

Allegation A- Abuse of Authority- Sergeant Darrien King stopped § 87(2)(b)

Allegation B- Abuse of Authority- Sergeant Darrien King stopped § 87(2)(b)

Allegation C- Abuse of Authority- Sergeant Darrien King stopped an individual.

Prior to being stopped, § 87(2)(b) stated he talked with some friends that attend § 87(2)(b)

§ 87(2)(b) stated that while he was at the methadone program he ingested the methadone he was prescribed and denied that he removed any narcotics from the premises. § 87(2)(b) § 87(2)(b) stayed in the area for over an hour. During that time, § 87(2)(b) spoke with his friends § 87(2)(b) and § 87(2)(b). However, § 87(2)(b) denied that he shook hands with anyone or exchanged any objects with any other individuals. After speaking to his friends, § 87(2)(b) was approached by PO Sosa and Sgt. King and placed into handcuffs. Sgt. King explained to § 87(2)(b) that he had observed him engage in a drug transaction, which § 87(2)(b) denied. At the same time, Det. Amanda Lopez and Det. Marrero approached § 87(2)(b) and § 87(2)(b) requested that they exit the vehicle and placed them into handcuffs (Board Review 1).

Sgt. King stated that he was working on foot doing undercover observations when he observed one of the two Hispanic males, identified via the investigation as § 87(2)(b) and § 87(2)(b) pass § 87(2)(b) a glassine envelope of heroin. Sgt. King described the packaging as a square envelope approximately one inch wide. § 87(2)(b) then placed the heroin in his right jacket pocket. During this time, Sgt. King ducked by a nearby car in order discretely radio to other members of the narcotics team to stop § 87(2)(b) and the two other individuals. During this time, Sgt. King briefly lost sight of § 87(2)(b) and the two other males. After radioing his team, Sgt. King and PO Sosa approached § 87(2)(b) while Det. Marrero and Det. Amanda Lopez approached § 87(2)(b) and § 87(2)(b). Sgt. King acknowledged that he explained to § 87(2)(b) that he saw him engage in a drug transaction and § 87(2)(b) denied that he was engaged in any transactions. Sgt. King's memo book confirmed that he observed a male pass § 87(2)(b) multiple glassine envelopes and that he stopped § 87(2)(b) and the results from that stop were negative (Board Review 13). Sgt. King stated that he did not complete a Stop, Question, and

Frisk Report and denied that one was completed for either of the other males that were stopped (Board Review 2).

PO Sosa did not recall the incident and did not recall the team stopping any individuals. However, PO Sosa recalled that he had a memo book entry regarding Sgt. King going over the radio to report an observation of a drug transaction (Board Review 10). PO Sosa recalled on the date of the incident that Sgt. King was in the field doing observations (Board Review 6).

Det. Marrero did not recall the incident but was familiar with the incident location being a known drug location § 87(2)(b). After being shown a copy of the tactical plan, Det. Marrero could only recall that she worked with Sgt. King and was assigned as the arresting officer that day. Det. Marrero acknowledged at the time of the incident that she was in the field but only had memo book entries noting that she was present for duty, did observations, and then ended her tour (Board Review 11). Det. Marrero did not recall Sgt. King going over the radio (Board Review 3). Det. Amanda Lopez also did not recall the incident but acknowledged that, according to the tactical plan, she was assigned to work with PO Sosa (Board Review 5). Det. Amanda Lopez's memo confirmed that she was assigned to the chase car with PO Sosa and at 12:45 p.m., she was within the confines of the 25th Precinct (Board Review 9).

A police officer may stop a person when he reasonably suspects that such person is committing, has committed or is about to commit a crime. To justify a stop, an officer must have reasonable suspicion that a crime is at hand. People v. DeBour, 40 N.Y.2d 210, 215 (1976) (Board Review 28)

§ 87(2)(g)

[REDACTED]

[REDACTED] Therefore it is recommended **Allegations A-C** be closed as **Unsubstantiated**.

Allegation D- Abuse of Authority- Sergeant Darrien King frisked § 87(2)(b)

Allegation E- Abuse of Authority- Sergeant Darrien King searched § 87(2)(b)

§ 87(2)(b) stated that after he was placed in handcuffs that Sgt. King removed items from his pocket and placed them on the ground. Sgt. King then searched § 87(2)(b)'s backpack, removed those items and placed them with the items which were removed from his pocket. However, after § 87(2)(b)'s pockets and backpack were searched nothing was found, so Sgt. King then uncuffed § 87(2)(b) and allowed him to leave.

According to Sgt. King, after he placed § 87(2)(b) into handcuffs, Sgt. King said, "I have to check you for our safety." Sgt. King then patted down the outside of § 87(2)(b)'s right jacket pocket where he thought § 87(2)(b) had placed the heroin he had purchased. Although Sgt. King primarily patted down the pocket for drugs, he also patted down § 87(2)(b)'s right pocket for any weapons because of his concern for safety. Sgt. King denied that he saw any bulges during his interaction with § 87(2)(b) or prior to stopping § 87(2)(b). Sgt. King did not recall § 87(2)(b) reaching for any specific pockets. Sgt. King stated that he only frisked and searched § 87(2)(b)'s right pocket where he thought the heroin had been placed. Sgt. King did not recall whether he searched any additional pockets. Sgt. King did not recall whether § 87(2)(b) had a backpack and did not recall removing any items from § 87(2)(b)'s backpack.

As noted above, the three other detectives that were involved in this incident did not recall the incident, did not recall Sgt. King or any officer searching § 87(2)(b) or his backpack, and did not recall § 87(2)(b) being frisked.

An officer may frisk an individual when he reasonably believes that he is in danger of physical injury by virtue of the detainee being armed. An officer must have probable cause to search an individual. People v. DeBour, 40 N.Y.2d 210; 215 (1976) (Board Review 28) In order to frisk an individual, an officer must have a particularized reasonable suspicion that the suspect may be armed and dangerous. People v. Forrest, 77 A.D.3d 511 (App. Div. 1st Dep't. 2010) (Board Review 26) Suspicion that an individual has engaged in a drug transaction is an insufficient basis for a frisk. People v. Brown, 204 A.D.2d 994; People v. Clark, 213 A.D.2d 946 (App. Div. 3rd Dep't. 1995) (Board Review 22 and 27).

§ 87(2)(g)
[REDACTED]

Therefore, it is recommended that **Allegation D** be closed as **Substantiated**.

§ 87(2)(g)
[REDACTED]

§ 87(2)(g)

Therefore it is recommended that **Allegation E** be closed as **Unsubstantiated**.

Allegation F- Abuse of Authority- Police Officer Jesus Sosa refused to provide his name to

§ 87(2)(b)

§ 87(2)(b) reported this incident approximately five months after the incident occurred. § 87(2)(b) alleged that he asked PO Sosa for his name once and that PO Sosa never provided the requested information. During the interaction, § 87(2)(b) never followed up with PO Sosa or requested that information again. § 87(2)(b) stated that Sgt. King provided his name to § 87(2)(b) at the end of the incident, which § 87(2)(b) wrote down and provided to the CCRB.

PO Sosa was interviewed six months after the incident and did not recall the incident. However, PO Sosa denied that § 87(2)(b) had requested his name and shield number and that he refused to provide it. Sgt. King stated that he was the only officer that interacted with § 87(2)(b) and did not recall if § 87(2)(b) requested any other detectives' names during the incident.

§ 87(2)(g)

Therefore it is recommended that **Allegation F** be closed as **Unsubstantiated**.

Allegation G- Abuse of Authority- An officer searched the vehicle in which individuals were occupants.

Allegation H- Abuse of Authority-Detective Amanda Lopez frisked individuals.

Allegation I- Abuse of Authority-Detective Sandy Marrero frisked individuals.

As noted above, § 87(2)(b) recalled that one of the female detectives searched, § 87(2)(b) car. § 87(2)(b) did not recall which of the detectives frisked § 87(2)(b) and "§ 87(2)(b) Also § 87(2)(b) was unsure if both detectives frisked § 87(2)(b) and "§ 87(2)(b) or if it was only one of them that conducted the frisk. However, § 87(2)(b) provided a similar description for both detectives and both have similar pedigree information.

As noted above, Det. Amanda Lopez and Det. Marrero did not recall the incident and did not recall frisking anyone on the date of the incident. Similarly, neither recalled searching § 87(2)(b) vehicle. § 87(2)(g)

Therefore it is recommended that **Allegations G - I** be closed as **Victim Unavailable**.

§ 87(2)(g), § 87(4-b)

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

Squad: 07

Investigator: _____ Daniel Cooper _____
Signature Print Date

Squad Leader: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date